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Sacramento Snapshot: Legislators launch bid to 'Trump-proof' California

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Author: Kaitlyn Schallhorn | Section: California Politics | 860 Words
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The California Legislature is back to work, sort of.

State legislators will gavel in at noon today and convene a special session called by the governor. Their purpose: "To safeguard California values and fundamental rights in the face of an incoming Trump administration."

Just don't expect that work to begin right away.

Monday, Dec. 2, starts the new two-year legislative session, and it's the day when new state legislators are sworn in. Legislators also will convene the special session. After that, they'll almost immediately go on winter break.

Convening a special session, lawmakers say, will allow the legislature to focus on solely on a single topic when they return. That'll happen in early January, and that's when the real work figures to begin.

And, despite all the rhetoric about how "Trump-proofing" the state might present legal and political hurdles, legislators and lobbyists expect the special session to be relatively straightforward.

Gov. Gavin Newsom's call for a special session — made the day after former President Donald Trump beat Vice President Kamala Harris — specifically requests additional resources for the state's Department of Justice to take on litigation to fight what it might perceive as "unlawful actions" undertaken by the incoming administration.

"They are focused entirely on appropriating money to Attorney General Rob Bonta and our Department of Justice for the sole purpose... of filing multiple lawsuits against the Trump administration based upon what they may do," said Chris Micheli, a veteran Sacramento lobbyist.

Others agree.

"The special session is likely to be very focused... in the event we need to litigate against the federal government, that we're prepared to do that and we're not caught flat-footed," said Assemblymember Jesse Gabriel, D-Encino, who chairs the Assembly Budget Committee.

If history is a guide, the state will feel moved to go to court. During the first Trump administration, California filed more than 120 lawsuits against the federal government the last time Trump was president, according to The Associated Press.

"We always want to cooperate with our federal partners regardless of who is in power," Gabriel said. "But we know from the previous administration, there's a good reason to make sure we're prepared. (And) in the event that we have to step up and protect the fundamental rights of California taxpayers, we are prepared to do so."

So, how much money does California need?

Gabriel estimated tens of millions of dollars, which he called a "modest investment" given the size of California's state budget. California's budget estimates the state will have about $22.2 billion in reserves by the end of the 2024-25 fiscal year.

"We already have attorneys in the California Department of Justice and the governor's office who have already been preparing" for potential litigation, said Gabriel.

But Republican legislators are opposed to the special session. Some worry that upsetting the incoming administration could result in the state losing federal aid, including for issues like wildfire recovery.

In 2018, during the "deadliest and most destructive" wildfire season on record for California, Trump initially declined to approve federal aid because of the state's political makeup, according to a former aide. But the president changed his mind, the aide (who backed Harris in the most recent election) said, after he was shown voter registration data from Orange County where Republicans had the edge.

The special session "sends a message, and it's kind of counterproductive to getting the help California is going to need from the federal government for wildfire mitigation and public safety," said Sen. Kelly Seyarto, R-Murrieta.

"It's doubling down on creating a worse relationship with an administration that is already strained," said Seyarto, whose district includes a sliver of Orange County.

But Gabriel suggested the work being requested for the special session should be viewed through a "nonpartisan lens." California, he noted, is among the top states that contribute the most in federal taxes.

"There's obviously an aspect here of standing up for fundamental rights and California values," said Gabriel. "But if there's going to be efforts in Washington to withhold money from California for wildfires or natural disasters, for example, we should legally get what we're owed. That's protecting California taxpayers."

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Seyarto suggested that Republican legislators could be a useful tool for the governor to shore up favor with the president-elect.

Last month, Assembly Republican Leader James Gallagher, R-Yuba City, penned an open letter to Trump asking for his help on "significant challenges facing California."

"From wildfires to energy costs to crime, California is facing serious problems," Gallager said. "With a new Trump administration, California has a unique opportunity to make progress on these critical issues."

Monday is also the day new state legislators will be sworn in, including Orange County's new state senator, Steven Choi.

The Irvine Republican previously served in the Assembly and said he was "thrilled" voters picked him to return to Sacramento. He defeated incumbent Sen. Josh Newman, D-Fullerton, in a close race.

"As no one — almost — expected my chance to win against the Democratic incumbent in the Democratic-leaning Orange County, my victory is much sweeter and gives hope to Republicans that we can achieve the badly needed balance of the legislative power with the right candidates sooner than one might have imagined," Choi said in a text.

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